

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 936

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO PROPERTY; AMENDING SECTION 18-7102, IDAHO CODE, AS ADDED IN SECTION 1 OF SENATE BILL NO. 1326, AS AMENDED, IF ENACTED BY THE SECOND REGULAR SESSION OF THE SIXTY-EIGHTH IDAHO LEGISLATURE, TO REVISE A DEFINITION; AMENDING SECTION 18-7104, IDAHO CODE, AS ADDED IN SECTION 1 OF SENATE BILL NO. 1326, AS AMENDED, IF ENACTED BY THE SECOND REGULAR SESSION OF THE SIXTY-EIGHTH IDAHO LEGISLATURE, TO REVISE PROVISIONS REGARDING FEDERAL GOVERNMENT AGENTS AND LOCAL COORDINATION; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Sections 18-7102, Idaho Code, as added in Section 1 of Senate Bill No. 1326, As Amended, if enacted by the Second Regular Session of the Sixty-eighth Idaho Legislature, be, and the same is hereby amended to read as follows:

18-7102. DEFINITIONS. As used in this chapter:

(1) "Exigent circumstances" means only those limited, judicially recognized exceptions to the warrant requirement under section 17, article I of the constitution of the state of Idaho and the fourth amendment to the United States constitution.

(2) "Government agent" means any employee or representative of the state of Idaho, or any political subdivision thereof, ~~or the federal government,~~ acting in an official capacity.

(3) "Private land not open to the public" or "private land" means any privately owned real property, not including any place of habitation or the associated curtilage, where a person knows or has reason to know that the person's presence is not permitted pursuant to the provisions of section 18-7008(2)(a), Idaho Code.

(4) "Search warrant" or "warrant" has the same meaning as that term is defined in section 19-4401, Idaho Code, and shall include an arrest warrant as described in section 19-507, Idaho Code.

SECTION 2. That Sections 18-7104, Idaho Code, as added in Section 1 of Senate Bill No. 1326, As Amended, if enacted by the Second Regular Session of the Sixty-eighth Idaho Legislature, be, and the same is hereby amended to read as follows:

18-7104. FEDERAL GOVERNMENT AGENTS AND LOCAL COORDINATION. Prior to executing a search warrant on private land pursuant to section 18-7103, Idaho Code, federal government agents ~~shall~~ should notify the county sheriff, unless exigent circumstances exist.

1 SECTION 3. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after its
3 passage and approval.